



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9628 (EXTENSION)
THIRD REVISION June 29, 1992

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9628 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to June 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

AUG 25 1994

(DATE)

Suzanne Hedgepeth
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Degussa Corporation
Ridgefield Park, NJ

July 1, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



U.S. Department
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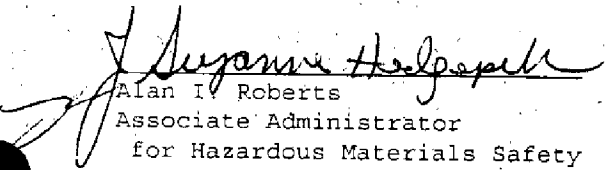
**Research and
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400 Seventh Street S.W.
Washington D.C. 20590

DOT-E 9628 (PTE)
FOURTH REVISION June 29, 1992

In accordance with 49 CFR 107.111 of the Department of Transportation (DOT) Hazardous Materials Regulations the party(ies) listed below is granted the status of party to DOT-E 9628. The expiration date of the exemption for the party(ies) is June 30, 1996.

This party status applies to the party(ies) listed below based on the application(s) submitted in accordance with 49 CFR 107.111 and the public proceeding thereon. All terms of the exemption remain unchanged. This authorization forms part of the exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

AUG 24 1994

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Cometals, Inc.
New York, NY

July 6, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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400 Seventh Street, S.W.
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JUN 29 1992

DOT-E 9628
(FOURTH REVISION)

1. Degussa Corporation, Teterboro, New Jersey, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer the packaging described in paragraph 7 below for use in the transportation in commerce of the corrosive solids and oxidizers described in paragraph 3 below subject to the requirements specified herein. This exemption authorizes the use of large, collapsible polyethylene-lined woven polypropylene bulk bags having a capacity of 1,000 kilos (approximately 2200 pounds) each, with or without bottom outlets, for shipment of corrosive solids and oxidizers, and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on Degussa Corporation's applications dated March 12, 1992, submitted in accordance with 49 CFR 107.105 and letter dated September 18, 1991.
3. HAZARDOUS MATERIALS (Descriptor and class). Cyanuric chloride, Class 8, (corrosive material); ammonium persulphate, sodium persulphate, potassium persulphate and sodium perborate, Class 5.1, (oxidizers); and other solid corrosive materials and oxidizers specifically identified to and acknowledged in writing by, the Office of Hazardous Materials Exemptions and Approvals (OHMEA). For shipment by vessel, materials must be classified and described in accordance with the International Maritime Organizations International Maritime Dangerous Goods (IMDG) Code. Materials must be authorized to be transported in flexible intermediate bulk container (FIBCs) under Appendix 2 of Section 26 of the General Introduction to the IMDG Code.
4. PROPER SHIPPING NAME (49 CFR 172.101). The specific chemical name or generic commodity description, as appropriate.
5. REGULATION AFFECTED. 49 CFR 173.152, 173.245(b).
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight and cargo vessel. Shipments by vessel must be made in conformance with Section 26 of the General Introduction to the IMDG Code.

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7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification collapsible, nonreusable flexible bulk bag. The bag is fabricated of woven polypropylene, incorporating lifting straps of woven polyester webbing or equivalent webbing, plus a lining of polyethylene or polyethylene/aluminum foil lamination (of 0.004-inch minimum thickness), with or without bottom outlets and having a capacity of not over 1,000 kilos (2,200 pounds). Bag, prepared as for shipment, must be capable of satisfactorily withstanding: free-fall drop tests (three from a height of four feet); Jerk test; Topple test; Topple and Drag test; Righting test, Abrasion test; as described in "Procedures for Performance Testing of Flexible Intermediate Bulk Containers," Packaging Institute, U.S.A., procedure T-4102-85, dated February, 1985.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shipment by highway must be in closed vehicles or freight containers, in full truckloads only.

c. Shipment by rail must be in DF box cars except that COFC or TOFC service is authorized in accordance with 49 CFR 174.61.

d. When bulk bags are transported by vessel, the following additional special provisions apply:

i. The corrosive solids listed in Section 3 must be shipped in closed freight containers or transport vehicles.

ii. Oxidizers that are permitted by the IMDG code to be transported without secondary protection may be carried as break-bulk cargo, provided -

(1) The hold or compartment is dry and thoroughly cleaned of all residue of previous cargo, and all loose debris and dunnage are removed.

(2) The hatches are inspected for watertightness before loading.

(3) The hold is free of sharp projections that could tear or puncture the bags.

(4) After the bags are unloaded, the hold or compartment is inspected for spillage and any residue removed.

iii. When any Oxidizer that is carried as break-bulk cargo is loaded or unloaded -

(1) Firehoses must be laid out in the loading or unloading area and must be operable at all times.

(2) Smoking, carrying matches or lighting devices, or performing hot work is prohibited in the loading or unloading area; and the area must be posted with appropriate warning signs.

e. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.

f. Each bag must be permanently and durably marked, in accordance with the requirements of Section 172.331 in letters at least two inches high on a contrasting background. In addition, for shipments by vessel, the marking requirements of subsection 26.1.5 of the General Introduction to the IMDG Code are required.

9. REPORTING REQUIREMENTS: Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. March 31, 1994.

Issued at Washington, D.C.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUN 29 1992
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

Dist: FHWA, FRA, USCG.